No. 24-5549

IN THE UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

Thomas Michael Smith and Monaleto Sneed,
Plaintiffs – Appellants,

v.

PAM Transport, Inc.,
Defendant – Appellee.

On Appeal from the United States District Court for the Middle District of Tennessee

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REPLY BRIEF OF APPELLANTS THOMAS MICHAEL SMITH AND MONALETO SNEED

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INTRODUCTION

Plaintiffs-Appellants Thomas Michael Smith and Monaleto Sneed (collectively "Plaintiffs") respectfully file this reply brief to address the arguments raised by Defendant-Appellee PAM Transport, Inc. ("PAM"), in its brief.

As demonstrated below, in Plaintiffs' principal brief, and in the amicus curiae brief filed by the U.S. Equal Employment Opportunity Commission ("EEOC"), the district court erred in granting summary judgment in favor of PAM on Plaintiffs' hostile work environment claims. The record demonstrates that Plaintiffs were subjected to continuous discriminatory treatment, comments, and behavior by their supervisors throughout their employment with PAM. Viewing the facts and evidence in the light most favorable to Plaintiffs and drawing all reasonable inferences in their favor, a reasonable jury could find that the harassment was motivated by race and sufficiently severe or pervasive to create a hostile work environment.

PAM argues that Plaintiffs failed to produce any direct evidence of racially derogatory comments. Plaintiffs, however, provided testimony that their supervisors, Jermaine Davis and Jordan Claytor, repeatedly referred to them as "monkey" and "monkey ass" in a hostile and threatening manner. These comments are racially charged and have been recognized by courts as highly offensive to

African Americans. The district court improperly disregarded this evidence by isolating the comments and failing to consider them in context.

Plaintiffs also presented comparative evidence showing that they were treated differently than their non-African American counterparts. PAM assigned Plaintiffs heavier workloads, longer routes, and excessive work hours, among other things. Non-African American drivers received shorter, more desirable routes and fewer loads and driving hours per day. This disparate treatment further supports Plaintiffs' claims that the harassment was based on race.

The district court further erred by not considering the totality of the circumstances in assessing the severity and pervasiveness of the harassment. The court improperly parsed out individual incidents rather than viewing the cumulative effect of the discriminatory conduct, comments, and behavior. The continuous and discriminatory nature of the harassment, including racial slurs, targeted hostility and abuse, excessive workloads, and different treatment, combined to create a hostile work environment.

The harassment also interfered with Plaintiffs' job performance and caused them significant emotional distress. Both Smith and Sneed testified that the discriminatory treatment affected their morale, caused anxiety, and made it more difficult for them to perform their jobs. This evidence further supports the fact that the harassment was severe and pervasive.

PAM failed to take any corrective action in response to Plaintiffs' repeated complaints of discrimination and harassment to management. Its inaction allowed the harassment to continue, rendering it liable. PAM cannot avail itself of the *Faragher/Ellerth* affirmative defense because Plaintiffs suffered tangible employment actions. Even if the defense were available, PAM did not exercise reasonable care to prevent and promptly correct the harassment, and Plaintiffs did not unreasonably fail to take advantage of preventive or corrective opportunities. Accordingly, Plaintiffs request that the Court reverse the judgment of the district court on their hostile work environment claims.

ARGUMENT

I. PAM's Discriminatory Conduct and Treatment of Plaintiffs Contributed to the Hostile Work Environment

PAM incorrectly asserts that Plaintiffs' hostile work environment claims are based only on the fact that "1) they were paid less (relative to the amount of work completed) than their non-African American counterparts; and 2) [supervisors] Davis and Claytor spoke to them in a 'hostile and abusive manner,' by cussing, screaming, criticizing, belittling, talking down to, and threatening them, as well as

referring to each of them as 'monkey ass.'" (PAM Brief at 7, 19).[1] While these actions, behaviors, and comments were a significant part of the hostile work environment, they were not the only factors contributing to it.

The district court overlooked, and PAM failed to address, the fact that, in their response to PAM's motion for summary judgment on their hostile work environment claims, Plaintiffs argued, "*As discussed above*, throughout Plaintiffs' employment, Davis and Claytor subjected them to continuous acts of racially disparate *treatment* that *caused* them to earn less per hour than their non-African American counterparts." (RE 31, Response at 18, Page ID # 366) (emphasis added). The evidence "discussed above" included the discriminatory work assignments and driving routes, loads, and hours and other treatment that contributed to the hostile work environment. Plaintiffs exhaustively argued this in their principal brief, as well. (Pls' Brief at 5-8, 11-14, 22-30, 41-44). The discriminatory treatment was part and parcel of the hostile work environment they experienced and repeatedly complained to management about.

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[1] Like the district court in its opinion, PAM in its brief attempts to "carve the work environment into a series of discrete incidents and then measure the harm occurring in each episode," which "is improper." *McNeal v. City of Blue Ash*, 117 F.4th 887, 905 (6th Cir. 2024) (quoting *Jackson v. Quanex Corp.*, 191 F.3d 647, 660 (6th Cir. 1999)). Instead, "the 'totality of the circumstances' approach requires" courts "to examine [plaintiff]'s treatment cumulatively to see whether it created an atmosphere of hostility that was more than the sum of its parts." *Id.*

PAM also incorrectly asserts that "the question of whether Plaintiffs' alleged evidence of extra loads, work assignments and excessive hours supports [their] hostile work environment claims is waived." (PAM Brief at 22). As shown above, nothing could be further from the truth. The district court and PAM improperly conflate the discriminatory treatment that contributed to the hostile work environment with a *result* of the treatment—*i.e.*, that Plaintiffs received "less pay" per hour than non-African American drivers.

All drivers received $180 per day but Smith and Sneed worked 10 and 12 hours and had to run multiple routes per day while non-African Americans worked fewer hours and ran fewer routes. (RE 33-1, Smith Dep. 38, 46, 49, 52, 68-70, 74-75, Page ID # 438, 446, 449, 452, 468-70, 474-75; RE 33-2, Sneed Dep. 90-91, 136-37, 146-47, Page ID # 600-01, 646-47, 656-57). This additional evidence should be considered a part of the totality of the circumstances in assessing the hostile work environment. As the Court recently held in *Schlosser v. VRHabilis, LLC*, 113 F.4th 674 (6th Cir. 2024), "Although discrete acts of discrimination are not independently actionable as a hostile work environment claim, the jury may certainly consider such acts in its evaluation of the overall working environment." *Id.* at 684. It elaborated, "the supervisors' decisions about which diving role Schlosser should fulfill on the team occurred daily. . . . These everyday choices

and occurrences are fairly characterized as 'repeated conduct' that contributed towards the hostile work environment." *Id.* at n. 1. The same may be said here.

PAM next incorrectly asserts that Plaintiffs' claims of discriminatory treatment are based on "unsubstantiated hearsay." (PAM Brief at 23-25). It never argued this in the district court; indeed, the word "hearsay" does not appear in its summary judgment memorandum or reply brief. (RE 25, Mem., Page ID # 160-80; RE 39, Reply, Page ID # 930-37). In any case, since Plaintiffs can subpoena white drivers like Melvin and supervisors like Davis and Claytor to testify at trial, and since PAM offered no contradictory testimony from any of the agents and employees with whom Plaintiffs testified they communicated, Plaintiffs' testimony is admissible for summary judgment purposes. *Wyatt v. Nissan N. Am., Inc.*, 999 F.3d 400, 423-24 and n.8 (6th Cir. 2021).

Furthermore, PAM admitted that its drivers "always" received $180 per day, regardless of whether it "took seven hours" or "12 hours" to complete the assigned work. (RE 33-4, Wright Dep. 20-21, Page ID # 852-53; RE 33-1, Smith Dep. 52-53, Page ID # 452-53). It failed to address Plaintiffs' argument that their reports to its managers and the responses they received about the discriminatory work assignments, extra loads, and excessive hours resulting in less pay are not hearsay and/or are admissible under Fed. R. Evid. 801(d)(2). (Pls' Brief at 24-25). For example, Smith's complaining "more than ten times" about "having to work more

hours" than non-African American drivers and Davis' responding, "You get what you get," "That's part of it," and "Maybe you need . . . to find another job" are admissible. (RE 33-1, Smith Dep. 70, 74-75, Page ID # 470, 474-75). So, too, are manager Jim Brown's statements to Smith that the discrimination "shouldn't be going on," that "[e]verybody should get the same treatment," that he "would check into it," and "said he did," but "nothing was ever done . . . because it kept going on." (RE 33-1, Smith Dep. 64-65, 77-79, Page ID # 464-65, 477-79); *Johnson v. UPS*, 117 Fed. Appx. 444, 456 n. 6 (6th Cir. 2004) (applying Fed. R. Evid. 801(d)(2)).

CONCLUSION

For the reasons discussed above and in Plaintiffs' and the EEOC's principal briefs, Smith and Sneed respectfully request that the Court reverse the judgment of the district court on their hostile work environment claims.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

This reply brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because it contains 1,458 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

This reply brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because it has been prepared in a proportionally spaced typeface, 14-point Times New Roman.

s/ Douglas B. Janney III
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CERTIFICATE OF SERVICE

I certify that I electronically filed and served this Reply Brief of Appellants Thomas Michael Smith and Monaleto Sneed using the Court's CM/ECF system upon M. Reid Estes, Jr., and Autumn L. Gentry, Dickinson Wright PLLC, 424 Church Street, Suite 800, Nashville, Tennessee 37219 on December 20, 2024.

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